

The Fortuna Update

Your quarterly briefing on IR & ER, Award compliance and WHS, plus how we can help

A NOTE FROM OUR MANAGING DIRECTOR

Welcome to the first edition of **The Fortuna Update**. Each quarter we'll cut through the noise on industrial relations, award and Fair Work changes, and workplace health & safety, and translate it into what it actually means for your business. No jargon, no 40-page bulletins, just the practical, "here's what to check this quarter" version.

2026 has already been a big year for employers: a fresh Annual Wage Review decision, Payday Super landing on 1 July, growing enforcement of psychosocial safety obligations, and the first ever root-and-branch review of the National Employment Standards. This issue covers what matters most for WA employers right now, and if anything here raises a flag for your business, we're one call away.

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SECTION 01

IR & ER Update

The three biggest industrial and employee relations developments this quarter, and what they mean on the ground.

Annual Wage Review 2026: award rates up 4.75%, minimum wage breaks \$1,000/week

+4.75%

Increase to modern award minimum rates, effective from the first full pay period on or after 1 July 2026

\$26.44/hr

New National Minimum Wage: \$1,004.90/week, the first time it has topped \$1,000

The Fair Work Commission also began phasing out the lowest award classification (C13), restructuring the bottom of the award pay scale. Worth tracking if your rates sit near that level.

What this means for you: if you haven't already updated pay rates for 2026/27, this is overdue and accruing risk with every pay run. We can run a same-week rate check across your award(s).

Payday Super starts 1 July 2026

Super guarantee contributions must now be paid **at the same time as wages** and land in the employee's fund within **7 business days** of payday. A new "qualifying earnings" measure replaces ordinary time earnings. Missing the window can trigger ATO penalties and interest, even where unintentional.

What this means for you: payroll cut-offs and super clearing house timing need to be re-checked against the new 7-day rule; this is a process risk, not just a finance one.

Reform on the horizon

The Government has launched the first-ever full review of the National Employment Standards, the Commission is examining regulated labour hire arrangements, and award flexibility in hospitality and retail is under active review. Meanwhile, "Same Job, Same Pay" orders continue to land, with orders and matters under consideration worth more than \$200 million nationally. None of this changes your obligations today, but it's the clearest signal yet that further reform is coming.

SECTION 02

Award Compliance Corner

Award underpayment remains one of the most common, and most expensive, risks we see in WA businesses. Here's what to check this quarter.

1. Rates

Confirm every classification reflects the 4.75% increase from the first full pay period on or after 1 July 2026, including allowances and penalty rates, which are often missed.

2. Casual conversion

80+ modern awards now carry a casual conversion / "employee choice" pathway. Long-term regular casuals may trigger active obligations to respond to conversion requests.

3. Classifications

With the FWC phasing out the C13 classification, businesses using entry-level classifications should watch for flow-on structural changes in future reviews.

4. Rostering & overtime

Hospitality and retail award flexibility is under active FWC review, with potential changes to penalty rates and rostering rules worth watching if these awards apply to you.

Real result: *we recently helped a 50+ employee sporting club that had been paid under the wrong award for five years, correcting classifications, contracts and payroll, and protecting directors from future liability.*

SECTION 03

WHS & Safety Focus

Two WHS developments worth putting on your radar this quarter, particularly for WA-based employers.

Psychosocial hazards: guidance is now enforcement

Psychosocial hazards (bullying, excessive workload, fatigue, poor workplace behaviour and emotional harm) are now a regulated, enforceable obligation in every Australian jurisdiction. PCBU's must actively identify, assess and eliminate these risks, not just respond after a complaint. Psychological injury claims already cost employers more than double the average physical injury claim.

New exposure limits for hazardous chemicals from 1 December 2026

New workplace exposure standards for hazardous chemicals take effect on 1 December 2026. If your business handles hazardous chemicals, dust or airborne contaminants, your safety documentation and monitoring should be reviewed well ahead of this date.

What this means for you: a documented psychosocial risk assessment is no longer "nice to have," and chemical exposure controls should be reviewed now, not in the weeks before December.

SECTION 04

Respect@Work Spotlight: the Positive Duty has teeth

The obligation to prevent sexual harassment before it happens is no longer theoretical. It's an active enforcement priority: the Australian Human Rights Commission has confirmed six formal inquiries underway, a further 18 organisations being monitored, and roughly 140 complaints relating to potential non-compliance. A statutory review of the positive duty is also scheduled this year, putting employer conduct under a brighter spotlight than ever before.

What this means for you: the positive duty requires proactive, documented prevention (policies, training, risk assessments and clear reporting pathways), not just a reactive complaints process. Waiting for a complaint before acting is now itself a compliance gap.

SECTION 05

How Fortuna Can Help

Everything in this newsletter (wage reviews, award risk, WHS obligations, Respect@Work) is work we do for clients every day.

HR Retainer	One dedicated consultant, same-day priority response, no lock-in contract, unlimited access to our HR/WHS template library, and legal backup through Fortuna's employment lawyers.
Award & Compliance	Classification checks, pay rate verification, penalty & overtime compliance, allowances, rostering and casual conversion reviews.
WHS Audits	Gap analysis, safety documentation & registers, risk assessments, incident reporting, safety training/inductions and contractor compliance checks.
HR Documentation	Employment contracts, policies & procedures, position descriptions, performance frameworks, induction packs and employee handbooks.
Investigations	Licensed workplace investigators for bullying, harassment and Respect@Work matters, plus insurance investigations, private investigations/surveillance and mediation.
Recruitment	End-to-end recruitment, confidential executive search, onsite recruiters for large projects, and mobilisation management for resources-sector clients.
Projects & Advisory	Enterprise agreements, redundancy/restructure support, M&A people integration, leadership training, remuneration benchmarking and HRIS rollout support, fixed-fee or hourly.



Christopher Straughan
 Managing Director

A multi-disciplinary expert across HR, WHS, workplace relations, IR and investigations, across Australia, Asia and New Zealand.



Michael Seeds
 Recruitment Manager

Leads our recruitment team, bringing a commercial, numbers-driven approach built on 5+ years in senior recruitment roles.

Not sure where you stand? Start with a health check.

Book a complimentary 30-minute call and we'll flag your top 3 risks from this issue (wages, WHS or Respect@Work) specific to your business.

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